

Ramanand Yadav Alias Rama Yadav v. State of U.P. And 3 Others

Allahabad High Court · Division Bench · 24 June 2019 · Criminal Misc. Writ Petition No. 16864 of 2019 · **Writ petition disposed of; prayer to quash the Section 135 FIR refused; compounding directed on a time-bound schedule; no coercive steps for three months if the petitioner applies and deposits, else the investigating officer may arrest**

HEADNOTE

A criminal writ to quash an FIR under Section 135 of the Electricity Act, 2003 is refused where the FIR, on its face, discloses a prima facie cognizable offence. Counsel's submission that a checking report in the assessment process is a separate civil liability under Section 126, and has nothing to do with lodging the FIR, was recorded; the Court did not decide whether a Supply Code checking report had been drawn or served by registered post. Because the offence is compoundable and the petitioner was ready to deposit the compounded amount, the Court directed a time-bound compounding application, a compounding report from the electricity authority, deposit of the compounded amount, and a stay of coercive steps for three months if that course is followed; default leaves the investigating officer free to arrest.

FACTUAL SUMMARY

Ramanand Yadav Alias Rama Yadav petitioned the Allahabad High Court to quash the FIR of Case Crime No. 0054 of 2019 under Section 135 of the Electricity Act, 2003, Police Station Karnda, District Ghazipur. On 18 June 2019 he was directed to implead the Electricity Distribution Corporation. On 20 June 2019 the Court required an affidavit showing that a checking report under the Electricity Supply Code had been drawn and served on him by registered post within 24 hours.

On 24 June 2019, counsel for the newly impleaded licensee submitted that the checking report for the assessment process is a separate civil liability under Section 126, distinct from an FIR for theft under Section 135, and that the offence is compoundable. The petitioner was ready to deposit the compounded amount.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

FIR under Section 135 not quashed where a cognizable offence is prima facie made out

QUESTION

Should an FIR under Section 135 of the Electricity Act, 2003 be quashed in a criminal writ where the petitioner also questions service of a Supply Code checking report?

HOLDING

No. On a perusal of the FIR of Case Crime No. 0054 of 2019, Police Station Karnda, District Ghazipur, a prima facie cognizable offence was made out. There was no ground to interfere with the FIR. The prayer to quash it was refused. Counsel for the licensee had submitted that the checking report in the assessment process is a separate civil liability under Section 126 and has nothing to do with lodging an FIR for theft under Section 135; the Court recorded that submission and decided the quashing prayer on the face of the FIR. ¶ order of 24.6.2019

QUALIFIER

The Court did not hold that a Supply Code checking report had been served, and did not independently construe Section 126 as a rule of law; it refused quashing because the FIR disclosed a cognizable offence.

FLAG Source is an unnumbered five-page order-sheet (18.6.2019, 20.6.2019, 24.6.2019, 20.12.2019). The reasoned disposal is 24.6.2019 (Naheed Ara Moonis and Jayant Banerji, JJ.). Earlier listing (J.J. Munir and Anil Kumar-IX, JJ.) directed impleadment of the distribution corporation (18.6.2019) and an affidavit on whether a checking report under the Electricity Supply Code had been drawn and served by registered post within 24 hours (20.6.2019). Respondent

numbering in the sheets shifts (respondent no. 4 / no. 5). A 20.12.2019 pass-over on a Bar resolution, after none appeared for the petitioner, is recorded on the same docket after final disposal; it is not treated as reopening the writ.

HOLDING-UNIT · EA2003::152

Compounding of a Section 135 offence — time-bound application, report and deposit; limited stay of coercive steps

QUESTION

Where a Section 135 FIR is not quashed but the offence is compoundable and the accused is ready to deposit the compounded amount, what directions follow?

HOLDING

The petitioner may move an application for compounding before the authority concerned within one week. The court concerned shall then summon the electricity authority within two weeks for a compounding report, to be submitted within 15 days. Upon receipt, that authority shall pass an appropriate order within three weeks, and the petitioner shall deposit the compounded amount within three weeks thereafter. If he deposits in that manner, no coercive steps shall be taken in the case for three months from the date of the order. If he defaults in moving the application or depositing, the investigating officer may arrest him. The writ petition was disposed of with those directions. ¶ [order of 24.6.2019](#)

QUALIFIER

The Court did not cite Section 152 of the Electricity Act, 2003 or a numbered Supply Code compounding clause. Counsel and the Court treated the Section 135 offence as compoundable. The compounding 'authority concerned' is not identified by office.

PRINCIPLE TAGS

fir-under-s135-not-quashed-where-misuse-prima-facie-made-out The FIR of Case Crime No. 0054 of 2019 under Section 135 was held to disclose a prima facie cognizable offence. The prayer to quash it was refused. ¶ [order of 24.6.2019](#)

s135-arrest-safeguards-and-compounding-remedy Quashing having been refused, the petitioner was put on a time-bound compounding course. Coercive steps, including arrest, are stayed for three months if he applies and deposits; default leaves the investigating officer free to arrest. ¶ [order of 24.6.2019](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A CHECKING REPORT UNDER THE ELECTRICITY SUPPLY CODE WAS DRAWN AND SERVED ON THE PETITIONER BY REGISTERED POST WITHIN 24 HOURS

The 20.6.2019 listing required an affidavit and postal proof. On 24.6.2019 the licensee filed a compliance affidavit and submitted that the checking report for the Section 126 assessment is distinct from the Section 135 FIR. The Court did not find whether the report had been served. ¶ [order of 20.6.2019](#); [order of 24.6.2019](#)

NOT DECIDED — WHETHER NON-SERVICE OF A SUPPLY CODE CHECKING REPORT VITIATES AN FIR UNDER SECTION 135

Counsel submitted that the checking report is a separate civil liability under Section 126 and has nothing to do with lodging the FIR. The Court recorded that submission and refused quashing on the face of the FIR, without construing any numbered Code clause. ¶ [order of 24.6.2019](#)

NOT DECIDED — MERITS OF THE THEFT ALLEGATION AND THE COMPOUNDING AMOUNT

Left to compounding if pursued, and otherwise to investigation and trial. The Court did not examine the inspection record or fix any sum. ¶ [order of 24.6.2019](#)